

SIGNATURE PAGE TO INVESTOR QUESTIONNAIRE

By signing below, the undersigned hereby acknowledges that the representations set forth in the Questionnaire are accurate and complete in all respects, and undertakes to immediately notify the Company in writing regarding any material change in the information set forth herein prior to the date and time that the undersigned purchases any Securities. The undersigned understands that the Company and its legal counsel will rely on the accuracy and completeness of these representations for the purpose of determining my suitability as a prospective investor under applicable securities laws, and that a false representation may constitute a violation of law and that any person who suffers damage as a result of a false representation may have a claim against me for damages.

Date

Authorized Signature

Print Name

Print Title (if applicable)

**SUBSCRIPTION AGREEMENT
PURSUANT TO PRIVATE OFFERING MEMORANDUM**

Horizon SATX Holdings, LLC
c/o Horizon SATX Manager, LLC
6510 FM 359 South Ste 100
Fulshear, Texas 77441
Attention: Sanjay Aggarwal

Re: Offering of up to 10,200 Class A Units comprised of (i) 7,200 Class A-1 Units and (ii) 3,000 Class A-3 Units (each a “Class A Unit”, and collectively, the “Class A Units”) of Horizon SATX Holdings LLC, a Texas limited liability company (the “Company”) for \$1,000.00 per Class A Unit (the “Offering”)

Dear Horizon SATX Manager, LLC:

The undersigned (“Subscriber”) hereby tenders this Subscription Agreement (the “Subscription Agreement”) subject to the terms and conditions set forth herein, and by executing this Agreement in the space provided agrees to such terms and conditions.

I. SUBSCRIPTION, NO REVOCATION, RIGHT OF REJECTION AND TERMINATION

A. Subscription. The undersigned hereby subscribes for and agrees to purchase from the Company, subject to the terms and conditions of the Offering and this Subscription Agreement, the number of Class A Units that are set forth on the attached signature page to this Subscription Agreement, at a price equal to \$1,000.00 per Class A Unit payable on the date this Subscription Agreement is executed and delivered to the Company by certified or cashier’s check to the order of the Company or by wire transfer to the Company. All references to dollars in this Subscription Agreement are to U.S. dollars.

B. No Revocation. In the event this Subscription Agreement is accepted by the Company, this Subscription Agreement may not be cancelled, revoked or withdrawn by Subscriber, and this Subscription Agreement and the documents submitted herewith shall survive (1) changes in the transactions, documents and instruments described in this Subscription Agreement or in any other document provided to Subscriber by the Company, and (2) Subscriber’s death, disability, incapacity, merger, consolidation, liquidation, dissolution, bankruptcy, sale of substantially all of its assets or other legal disability with respect to Subscriber; provided, however, that if the Company shall not have accepted this Subscription Agreement within 180 days after the date of this Subscription Agreement, by depositing either a certificate evidencing the purchased Class A Units or by written notice of acceptance of this Subscription Agreement in the United States mail, postage prepaid, addressed to Subscriber at the address set forth below, then, at the option of Subscriber, exercised by written notice to the Company after the expiration of such 180 day period (by certified or registered mail, return receipt requested), but before the acceptance of this Subscription Agreement by the Company, this Subscription Agreement may be cancelled.

C. Right of Rejection. The Class A Units are offered subject to prior sale and subject to the right of the Company to accept or reject this and any other Subscription Agreement, in whole or in part, in its sole and absolute discretion, for any reason or for no reason, and if accepted, the Class A Units purchased pursuant to this Subscription Agreement will be issued only in the name of Subscriber. The execution of this Subscription Agreement by Subscriber constitutes a binding offer to buy the number of Class A Units that are set forth on the attached signature page to this Subscription Agreement at \$1,000.00 per Class A Unit and an agreement to hold such offer open until it is accepted or rejected by the Company, or until the Subscriber notifies the Company that it is cancelling and withdrawing its offer in accordance with and pursuant to Section I.B above, whichever comes first. The Company has the right to notify the Subscriber that less than all of the Class A Units requested by the Subscriber are being accepted. In such case, the Subscriber will be deemed to have elected such lower number of Class A Units.

D. Termination. The Company may terminate the Offering, for any reason or no reason, at any time before or after the sale of all or any portion of the Class A Units offered in the Offering. If the Offering is terminated by the Company or if this Subscription Agreement is revoked by Subscriber, in accordance with and pursuant to the terms of this Subscription Agreement, or rejected by the Company, this Subscription Agreement shall be cancelled and all subscription monies received by the Company in connection with this Subscription Agreement will be returned to Subscriber without interest, and Subscriber will cease to have any interest in, or rights with respect to, the Company or its property and assets in connection with this Subscription Agreement.

II. OFFERING MATERIAL

A. Subscriber represents and warrants that it is in receipt of the following items:

1. The Confidential Private Offering Memorandum, dated December 27, 2023 (the “Offering Memorandum”);
2. Each of the attachments referenced in the Offering Memorandum (the “Attachments”);
3. The Company’s Operating Agreement, to be dated prior to the Closing (the “Operating Agreement”, and collectively with the Offering Memorandum, the Attachments, the Operating Agreement and this Subscription Agreement, the “Offering Materials”); and
4. All other information and documentation as Subscriber has requested in order to evaluate its investment in the Company.

III. RESTRICTIONS ON TRANSFER

A. Subscriber acknowledges and agrees:

1. that it will not sell, assign, pledge, encumber, distribute, transfer or otherwise dispose of in any manner the Class A Units so acquired in violation of the Securities Act of 1933, as amended (the “Act”), any

applicable state or other securities laws, including, without limitation, the Investment Company Act of 1940, as amended, and the Investment Advisers Act of 1940, as amended (“Other Securities Laws”), any rules or regulations of the Securities and Exchange Commission, any laws or regulations of the State of Texas or any other federal, state or municipal authority having jurisdiction thereof, or the Operating Agreement.

2. that, in taking unregistered securities, it must continue to bear the economic risk of its investment for an indefinite period of time because such Class A Units have not been registered under the Act or Other Securities Laws and may not be easily transferrable pursuant to the Operating Agreement;
3. that the Class A Units cannot be transferred unless registered under the Act and Other Securities Laws or an exemption from any such registration is applicable to such transfer; and
4. that it has no rights whatsoever to request or demand, and the Company is under no obligation whatsoever to furnish, a registration of any of the Class A Units under the Act or Other Securities Laws.

B. The Units issued pursuant to this Subscription Agreement may not be transferred except in a transaction which is in compliance with the Act and Other Securities Laws and pursuant to the Operating Agreement. Along with any other obligations Subscriber has under the Operating Agreement, it shall be a condition to any such transfer that Subscriber furnish to the Company an opinion of counsel to Subscriber, reasonably satisfactory to the Company, that the effect of such proposed transfer would not result in a violation of, or liability to the Company under, the Act and Other Securities Laws.

C. Subscriber acknowledges that the Units will not be certificated.

IV. SUBSCRIBER’S REPRESENTATIONS AND WARRANTIES; OTHER COVENANTS

Subscriber makes the following representations, warranties, acknowledgments and agreements in order to induce the Company to accept this subscription:

A. If a natural person, Subscriber is 21 years of age or older. If a corporation, limited liability company, partnership, trust or other entity, Subscriber is duly organized and in good standing under its state of formation and is authorized, empowered and qualified to execute this Subscription Agreement and to make an investment in the Company as contemplated herein. Each of this Subscription Agreement and the Operating Agreement is valid, binding and enforceable against the Subscriber in accordance with its terms.

B. Subscriber, at all times since Subscriber received a copy of the Operating Agreement, was, and is, if an individual, a bona fide resident of the state, and, if an entity, had, and has, its principal office and principal place of business in the state(s), set forth in Subscriber’s address below; if the state of his or her principal residence, or the state of its principal office or principal place of business, changes, or Subscriber’s address changes in any other respect, before

the consummation of Subscriber's purchase of the Class A Units subscribed for under this Subscription Agreement, Subscriber will promptly notify the Company, and if the change in the state of his or her principal residence, or its principal office or principal place of business, is to a state in which an offer and/or sale of Class A Units is prohibited by applicable law, any offer to sell Class A Units to Subscriber shall be deemed retracted and Subscriber shall cease to be entitled to purchase Class A Units pursuant to such offer. In making such representation and warranty, Subscriber understands that: (a) if it is an individual, he or she is deemed to be a resident of the state of his or her principal residence; (b) if it is a corporation, limited liability company, partnership, trust, or other form of business organization, it is deemed to be a resident of the state where its principal office is located; and (c) notwithstanding the foregoing, if it is a corporation, limited liability company, partnership, trust, or other form of business organization which is organized for the specific purpose of acquiring Class A Units, it is deemed to be a resident of the state(s) of all of the beneficial owners of the undersigned.

C. Subscriber has received, carefully read and understands the Operating Agreement, including the risk factors set forth therein, and has relied on nothing other than the Operating Agreement in deciding whether to make an investment in the Company. In addition, Subscriber acknowledges, represents and warrants that:

1. it, or its representatives or agents, has, prior to its investment in the Company, reviewed the representations concerning the Company contained in the Operating Agreement, has made inquiry concerning the Company, its business and personnel, and is familiar with the proposed business of the Company;
2. it understands the financial condition of the Company and the risks associated with an investment in the Company;
3. it has been given the opportunity to obtain additional information beyond the Operating Agreement in order to evaluate the merits and risks of an investment in the Company and to verify the accuracy of the information contained in the Operating Agreement and such information has been made available by the Company;
4. it has been given the opportunity to ask questions concerning the terms and conditions of the Offering and the Company and such questions have been answered to Subscriber's satisfaction;
5. all matters relating to the Company and Subscriber's investment in the Class A Units have been explained to Subscriber to Subscriber's satisfaction and Subscriber understands the speculative risks involved in its investment in the Company; and
6. no statement, printed material or other information that is contrary to the information contained in the Operating Agreement has been given or made by or on behalf of the Company to Subscriber.

D. Subscriber agrees to execute the Operating Agreement simultaneously herewith (which Operating Agreement shall become binding upon the undersigned as of the date of the Operating Agreement).

E. Subscriber is an “accredited investor” as that term is defined in Regulation D promulgated under the Act.

F. Subscriber understands that the Class A Units have not been, and will not be, registered under the Act or Other Securities Laws, and are being offered and sold in reliance upon federal and state exemptions from registration requirements for transactions not involving any public offering. Subscriber understands that reliance upon such exemptions is based in part upon the representations of the undersigned contained herein. Subscriber is acquiring the Class A Units for its own account and for the purposes of investment and not with a view to any distribution or resale thereof within the meaning of the Act and Other Securities Laws. Subscriber (1) is a sophisticated investor with such knowledge and experience in business and financial matters as will enable it to evaluate the merits and risks of investment in the Company, (2) is able to bear the economic risk and lack of liquidity of an investment in the Company, and (3) is able to bear the risk of loss of its entire investment in the Company.

G. Subscriber has a preexisting personal or business relationship with the Company or one of its officers, managers or controlling persons, or by reason of Subscriber’s business or financial experience or the business or financial experience of Subscriber’s professional advisors who are unaffiliated with, and who are not compensated by, the Company or any affiliate of the Company, directly or indirectly, can be reasonably assumed to have the capacity to protect its own interests in connection with the transaction contemplated by this Subscription Agreement. Preexisting personal or business relationships include any relationship consisting of personal or business contacts of a nature and duration such as would enable a reasonably prudent purchaser to be aware of the character, business acumen and general business and financial circumstances of the person with whom such relationship exists.

H. Subscriber understands that (1) an investment in the Company involves certain risks, (2) the Class A Units will be subject to certain restrictions on transferability as set forth in Section III hereof, and (3) as a result of the foregoing, the marketability of the Class A Units will be severely limited.

I. Subscriber understands that: (1) the Company has no financial or operating history; (2) no federal, state, local or foreign agency has passed upon the Class A Units or made any finding or determination as to the fairness of this investment; (3) it is not entitled to cancel, withdraw, terminate or revoke this subscription or any of the powers conferred herein; (4) the Company may accept this subscription in whole or in part; and (5) investment returns set forth in the Offering Memorandum or in any supplemental letters or materials thereto are not necessarily comparable to the returns, if any, which may be achieved on investments made by the Company.

J. All of the information set forth in the Investor Questionnaire on Schedule 1 hereto (the “Investor Questionnaire”) is true and correct as of the date hereof.

K. Subscriber understands that the Company will rely on the information concerning, and representations of, Subscriber set forth in this Subscription Agreement, including, without limitation, the Investor Questionnaire, and any other document delivered to the Company by Subscriber in connection with the Offering (the “Subscriber Information”) in determining whether to accept Subscriber’s subscription.

L. The Subscriber Information does not contain any untrue statement of a material fact nor does it omit to state a material fact necessary in order to make the Subscriber Information not misleading.

V. INDEMNIFICATION

A. Subscriber shall indemnify, defend and hold harmless the Company and its affiliates, agents, directors, officers and employees from and against any and all loss, damage, liability or expense, including attorneys’ fees and court costs, which they or any of them may suffer, sustain or incur by reason of, or in connection with, any misrepresentation or breach of representation, warranty or agreement made by Subscriber under or in connection with this Subscription Agreement, or in connection with the sale or distribution by Subscriber of the Class A Units purchased by it pursuant to this Subscription Agreement in violation of the Act or Other Applicable Law.

VI. CLOSING

A. The closing of the purchase of Class A Units contemplated by this Subscription Agreement shall take place at the offices of the Company as determined appropriate by the Company in its sole discretion (the “Closing”).

B. At the Closing,

1. the Company shall deliver notice if less than all of the Class A Units requested by Subscriber are being accepted;
2. At such date specified by the Company, but in any event prior to Closing on the Project, Subscriber shall deliver a certified or cashier’s check payable to the order of the Company or wire transfer to the Company in the amount necessary to equal \$1,000.00 per Class A Unit issued to Subscriber;
3. Subscriber shall execute and deliver the Operating Agreement and any other documents reasonably requested by the Company to further the transactions contemplated by this Subscription Agreement.

C. The representations, warranties and Subscriber Information contained herein shall be true and correct in all respects as of the date of the Closing as though such representations and warranties were made, and such Subscriber Information was provided, at and as of the Closing and all commitments and covenants made herein shall survive the Closing.

(Signature page follows)

SIGNATURE PAGE

The undersigned herewith subscribes for the number of Class A Units set forth below. This Subscription Agreement and the representations, warranties, acknowledgments and covenants contained in this Subscription Agreement (i) shall be binding upon the heirs, executors, administrators, successors and permitted assigns of the undersigned, (ii) may not be cancelled, withdrawn, revoked, or terminated by the undersigned except as set forth herein, (iii) will be governed by and construed in accordance with the laws of the State of Texas (without giving effect to any choice of law or conflict of law rules or provisions that would cause the application of laws of any jurisdiction other than the State of Texas). If there is more than one signatory hereto, the representations, warranties, acknowledgments and agreements of the undersigned are made jointly and severally.

Number of Class A-1 Units subscribed for (minimum 50):

Number of Class A-3 Units subscribed for (minimum 1,000):

Price per Class A Unit:

\$1,000.00

**Total Cost of Class A Units Purchased (minimum is \$50,000.00
for Class A-1 Units, and \$1,000,000.00 for Class A-3 Units):**

SUBSCRIBER:

By: _____

Its: _____

Date: _____, 202__

Address:

Telephone: _____

Facsimile: _____

Email: _____

State of Organization or Residence:

Taxpayer Identification Number or SSN:

Date: _____

[Signatures on following page]

ACCEPTED BY:

Horizon SATX Holdings, LLC,
a Texas limited liability company

By: **Horizon SATX Manager, LLC,**
a Delaware limited liability company, its Manager

By: _____

Name: Sanjay Aggarwal

Title: Manager

Date: _____

SCHEDULE 1 - INVESTOR QUESTIONNAIRE

This portion of the Subscription Agreement addresses the financial characteristics of Subscriber. If Subscriber is a corporation, limited liability company, partnership, trust, or other form of business organization, and was formed for the purpose of acquiring the Class A Units, each beneficial owner of the equity securities or equity interests in such entity must complete this portion of the Subscription Agreement. Please contact **Trevor Thompson** (Email: trevor@massive.capital) if you have any questions regarding this portion of the Subscription Agreement.

PLEASE ANSWER ALL QUESTIONS. If the appropriate answer is “None” or “Not Applicable,” please so state. Please print or type your answers to all questions. Attach additional sheets if necessary to complete your answers to any item.

1. **JOINT PURCHASES:**

If a husband and wife are purchasing the Class A Units jointly, please indicate which spouse is making the investment decision by checking the appropriate box.

Husband ☐

Wife ☐

Both Spouses ☐

2. **FEDERAL ACCREDITED INVESTOR STATUS: INDIVIDUALS, GRANTORS OF REVOCABLE TRUSTS, PARTNERS OF PARTNERSHIPS FORMED TO ACQUIRE CLASS A UNITS**

If an individual is making this investment, please answer the following questions concerning your financial condition by marking the appropriate box in the right margin.

2.1 My individual income during each of the two preceding calendar years exceeded \$200,000 and I reasonably expect my annual income in the current calendar year to exceed \$200,000.

☐
Yes

☐
No

2.2 My income with my spouse exceeded \$300,000 in each of the two preceding calendar years and I reasonably expect my income with my spouse to be in excess of \$300,000 in the current calendar year.

☐
Yes

☐
No

2.3 My individual net worth (or joint net worth with my spouse) exceeds \$1,000,000 excluding the value of my principal residence.

☐
Yes

☐
No

2.4 I am a knowledgeable employee of the Company and therefore considered an accredited investor.

☐
Yes

☐
No

3. FEDERAL ACCREDITED INVESTOR STATUS: ENTITY INVESTORS [E.G., PARTNERSHIPS, CORPORATIONS, TRUSTS OTHER THAN REVOCABLE TRUSTS, EMPLOYEE BENEFIT PLANS, AND OTHER FORMS OF BUSINESS ASSOCIATIONS NOT FORMED TO ACQUIRE CLASS A UNITS]

If an entity (e.g., a trust, partnership, corporation, limited liability company, employee benefit plan or other form of business association not formed to acquire Class A Units) is making this investment, please answer the following questions concerning its financial condition by marking the appropriate box in the right hand margin.

3.1 Each individual equity owner of the entity investor (or each individual equity owner of an entity which is an equity owner of the entity investor) can answer "yes" to at least one of the questions enumerated in Section 2 above.

☐ []
Yes No

3.2 Each entity equity owner of the entity investor can answer "yes" to at least one of the other questions enumerated in this Section 3.

☐ []
Yes No

3.3 The entity investor (i) is either (-A-) an organization described in Section 501(c)(3) of the Internal Revenue Code, (-B-) a corporation, (-C-) a Massachusetts or similar business trust, or (-D-) a partnership, (ii) was not formed for the specific purpose of acquiring the Class A Units, and (iii) has total assets in excess of \$5,000,000.

☐ []
Yes No

3.4 The entity is a trust (i) with total assets in excess of \$5,000,000, (ii) which was not formed for the specific purpose of acquiring the Class A Units, and (iii) whose purchase of the Class A Units is directed by a person who has such knowledge and experience in financial and business matters that such person is capable of evaluating the merits and risks of an investment in the Company.

☐ []
Yes No

3.5 The entity is an employee benefit plan within the meaning of the Employee Retirement Income Act of 1974, and either (i) the investment decision is made by a plan fiduciary, as defined in Section 3(21) of such Act, which is either a bank, savings and loan association, insurance company, or registered investment advisor; or (ii) the employee benefit plan has total assets in excess of \$5,000,000; or (iii) if a self-

directed plan, the investment decisions are made solely by persons that are accredited investors (i.e. persons that can answer “yes” to at least one of the questions enumerated in Section 2 above).

☐ []
Yes

☐ []
No

3.6 The manager or member is a knowledgeable employee of the Company and is therefore an accredited investor.

☐ []
Yes

☐ []
No

**COUNTERPART SIGNATURE PAGE OF MEMBERS TO
AMENDED AND RESTATED
LIMITED LIABILITY COMPANY AGREEMENT OF
HORIZON SATX HOLDINGS, LLC
DATED AS OF _____**

In accordance with that certain Amended and Restated Limited Liability Company Agreement of Horizon SATX Holdings, LLC, dated as of December 27, 2023, (the “Agreement”), the undersigned, by its signature hereto, agrees to become a Member of the Company and be bound by all of the terms and conditions in the Agreement, effective as of the date set forth below, and shall make the Capital Contribution set forth on such Person’s Subscription Agreement executed and delivered to the Company with this signature page to the Agreement. Capitalized terms used herein and not otherwise defined shall have the meanings ascribed to them in the Agreement.

The undersigned, subject to acceptance by the Manager, hereby becomes a Member pursuant to the Agreement and hereby agrees to all of the terms of the Agreement and agrees to be bound by the terms and provisions thereof, hereby ratifying and approving all actions heretofore taken by the Manager in respect of the Company.

(Partnership, Corporation, Trust
or Qualified Plan Signature)

(Individual Signatures)

Name of Entity (Print)

Printed Name (First, Middle, Last)

By _____

(Signature)

(Signature)

Name (Print)

Title

Business Address:

Home Address:

Street

Street

City State Zip Code

City State Zip Code

Send Notices to (Check One):

Business Address: ☐ Home Address: ☐

Email Address

Taxpayer ID or Social Security Number

(JOINT PURCHASERS SHOULD COMPLETE THE FOLLOWING PAGE)

Joint Purchaser, if any:

_____ Printed Name (First, Middle, Last)	_____ Signature
_____ Legal Form of Ownership	_____ Social Security Number
<u>Home Address:</u>	<u>Business Address:</u>
_____ Street	_____ Street
_____ City State Zip Code	_____ City State Zip Code

ACCEPTED:

Horizon SATX Holdings, LLC,
a Texas limited liability company

By: **Horizon SATX Manager, LLC,**
a Delaware limited liability company, its Manager

By: _____
Name: Sanjay Aggarwal
Title: Manager

**Request for Taxpayer
Identification Number and Certification**

Go to www.irs.gov/FormW9 for instructions and the latest information.

**Give form to the
requester. Do not
send to the IRS.**

Before you begin. For guidance related to the purpose of Form W-9, see *Purpose of Form*, below.

Print or type. See Specific Instructions on page 3.	1 Name of entity/individual. An entry is required. (For a sole proprietor or disregarded entity, enter the owner's name on line 1, and enter the business/disregarded entity's name on line 2.)	
	2 Business name/disregarded entity name, if different from above.	
	3a Check the appropriate box for federal tax classification of the entity/individual whose name is entered on line 1. Check only one of the following seven boxes. ☐ Individual/sole proprietor ☐ C corporation ☐ S corporation ☐ Partnership ☐ Trust/estate ☐ LLC. Enter the tax classification (C = C corporation, S = S corporation, P = Partnership) Note: Check the "LLC" box above and, in the entry space, enter the appropriate code (C, S, or P) for the tax classification of the LLC, unless it is a disregarded entity. A disregarded entity should instead check the appropriate box for the tax classification of its owner. ☐ Other (see instructions) _____	4 Exemptions (codes apply only to certain entities, not individuals; see instructions on page 3): Exempt payee code (if any) _____ Exemption from Foreign Account Tax Compliance Act (FATCA) reporting code (if any) _____ (Applies to accounts maintained outside the United States.)
	3b If on line 3a you checked "Partnership" or "Trust/estate," or checked "LLC" and entered "P" as its tax classification, and you are providing this form to a partnership, trust, or estate in which you have an ownership interest, check this box if you have any foreign partners, owners, or beneficiaries. See instructions ☐	
	5 Address (number, street, and apt. or suite no.). See instructions.	Requester's name and address (optional)
	6 City, state, and ZIP code	
	7 List account number(s) here (optional)	

Part I Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. The TIN provided must match the name given on line 1 to avoid backup withholding. For individuals, this is generally your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the instructions for Part I, later. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN*, later.

Note: If the account is in more than one name, see the instructions for line 1. See also *What Name and Number To Give the Requester* for guidelines on whose number to enter.

Social security number											
				-				-			
or											
Employer identification number											
					-						

Part II Certification

Under penalties of perjury, I certify that:

1. The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me); and
2. I am not subject to backup withholding because (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding; and
3. I am a U.S. citizen or other U.S. person (defined below); and
4. The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct.

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and, generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions for Part II, later.

Sign Here	Signature of U.S. person	Date
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General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Future developments. For the latest information about developments related to Form W-9 and its instructions, such as legislation enacted after they were published, go to www.irs.gov/FormW9.

What's New

Line 3a has been modified to clarify how a disregarded entity completes this line. An LLC that is a disregarded entity should check the appropriate box for the tax classification of its owner. Otherwise, it should check the "LLC" box and enter its appropriate tax classification.

New line 3b has been added to this form. A flow-through entity is required to complete this line to indicate that it has direct or indirect foreign partners, owners, or beneficiaries when it provides the Form W-9 to another flow-through entity in which it has an ownership interest. This change is intended to provide a flow-through entity with information regarding the status of its indirect foreign partners, owners, or beneficiaries, so that it can satisfy any applicable reporting requirements. For example, a partnership that has any indirect foreign partners may be required to complete Schedules K-2 and K-3. See the Partnership Instructions for Schedules K-2 and K-3 (Form 1065).

Purpose of Form

An individual or entity (Form W-9 requester) who is required to file an information return with the IRS is giving you this form because they

must obtain your correct taxpayer identification number (TIN), which may be your social security number (SSN), individual taxpayer identification number (ITIN), adoption taxpayer identification number (ATIN), or employer identification number (EIN), to report on an information return the amount paid to you, or other amount reportable on an information return. Examples of information returns include, but are not limited to, the following.

- Form 1099-INT (interest earned or paid).
- Form 1099-DIV (dividends, including those from stocks or mutual funds).
- Form 1099-MISC (various types of income, prizes, awards, or gross proceeds).
- Form 1099-NEC (nonemployee compensation).
- Form 1099-B (stock or mutual fund sales and certain other transactions by brokers).
- Form 1099-S (proceeds from real estate transactions).
- Form 1099-K (merchant card and third-party network transactions).
- Form 1098 (home mortgage interest), 1098-E (student loan interest), and 1098-T (tuition).
- Form 1099-C (canceled debt).
- Form 1099-A (acquisition or abandonment of secured property).

Use Form W-9 only if you are a U.S. person (including a resident alien), to provide your correct TIN.

Caution: If you don't return Form W-9 to the requester with a TIN, you might be subject to backup withholding. See *What is backup withholding*, later.

By signing the filled-out form, you:

1. Certify that the TIN you are giving is correct (or you are waiting for a number to be issued);
2. Certify that you are not subject to backup withholding; or
3. Claim exemption from backup withholding if you are a U.S. exempt payee; and
4. Certify to your non-foreign status for purposes of withholding under chapter 3 or 4 of the Code (if applicable); and
5. Certify that FATCA code(s) entered on this form (if any) indicating that you are exempt from the FATCA reporting is correct. See *What Is FATCA Reporting*, later, for further information.

Note: If you are a U.S. person and a requester gives you a form other than Form W-9 to request your TIN, you must use the requester's form if it is substantially similar to this Form W-9.

Definition of a U.S. person. For federal tax purposes, you are considered a U.S. person if you are:

- An individual who is a U.S. citizen or U.S. resident alien;
- A partnership, corporation, company, or association created or organized in the United States or under the laws of the United States;
- An estate (other than a foreign estate); or
- A domestic trust (as defined in Regulations section 301.7701-7).

Establishing U.S. status for purposes of chapter 3 and chapter 4 withholding. Payments made to foreign persons, including certain distributions, allocations of income, or transfers of sales proceeds, may be subject to withholding under chapter 3 or chapter 4 of the Code (sections 1441–1474). Under those rules, if a Form W-9 or other certification of non-foreign status has not been received, a withholding agent, transferee, or partnership (payor) generally applies presumption rules that may require the payor to withhold applicable tax from the recipient, owner, transferor, or partner (payee). See Pub. 515, *Withholding of Tax on Nonresident Aliens and Foreign Entities*.

The following persons must provide Form W-9 to the payor for purposes of establishing its non-foreign status.

- In the case of a disregarded entity with a U.S. owner, the U.S. owner of the disregarded entity and not the disregarded entity.
- In the case of a grantor trust with a U.S. grantor or other U.S. owner, generally, the U.S. grantor or other U.S. owner of the grantor trust and not the grantor trust.
- In the case of a U.S. trust (other than a grantor trust), the U.S. trust and not the beneficiaries of the trust.

See Pub. 515 for more information on providing a Form W-9 or a certification of non-foreign status to avoid withholding.

Foreign person. If you are a foreign person or the U.S. branch of a foreign bank that has elected to be treated as a U.S. person (under Regulations section 1.1441-1(b)(2)(iv) or other applicable section for chapter 3 or 4 purposes), do not use Form W-9. Instead, use the appropriate Form W-8 or Form 8233 (see Pub. 515). If you are a qualified foreign pension fund under Regulations section 1.897(l)-1(d), or a partnership that is wholly owned by qualified foreign pension funds, that is treated as a non-foreign person for purposes of section 1445 withholding, do not use Form W-9. Instead, use Form W-8EXP (or other certification of non-foreign status).

Nonresident alien who becomes a resident alien. Generally, only a nonresident alien individual may use the terms of a tax treaty to reduce or eliminate U.S. tax on certain types of income. However, most tax treaties contain a provision known as a saving clause. Exceptions specified in the saving clause may permit an exemption from tax to continue for certain types of income even after the payee has otherwise become a U.S. resident alien for tax purposes.

If you are a U.S. resident alien who is relying on an exception contained in the saving clause of a tax treaty to claim an exemption from U.S. tax on certain types of income, you must attach a statement to Form W-9 that specifies the following five items.

1. The treaty country. Generally, this must be the same treaty under which you claimed exemption from tax as a nonresident alien.
2. The treaty article addressing the income.
3. The article number (or location) in the tax treaty that contains the saving clause and its exceptions.
4. The type and amount of income that qualifies for the exemption from tax.
5. Sufficient facts to justify the exemption from tax under the terms of the treaty article.

Example. Article 20 of the U.S.-China income tax treaty allows an exemption from tax for scholarship income received by a Chinese student temporarily present in the United States. Under U.S. law, this student will become a resident alien for tax purposes if their stay in the United States exceeds 5 calendar years. However, paragraph 2 of the first Protocol to the U.S.-China treaty (dated April 30, 1984) allows the provisions of Article 20 to continue to apply even after the Chinese student becomes a resident alien of the United States. A Chinese student who qualifies for this exception (under paragraph 2 of the first Protocol) and is relying on this exception to claim an exemption from tax on their scholarship or fellowship income would attach to Form W-9 a statement that includes the information described above to support that exemption.

If you are a nonresident alien or a foreign entity, give the requester the appropriate completed Form W-8 or Form 8233.

Backup Withholding

What is backup withholding? Persons making certain payments to you must under certain conditions withhold and pay to the IRS 24% of such payments. This is called “backup withholding.” Payments that may be subject to backup withholding include, but are not limited to, interest, tax-exempt interest, dividends, broker and barter exchange transactions, rents, royalties, nonemployee pay, payments made in settlement of payment card and third-party network transactions, and certain payments from fishing boat operators. Real estate transactions are not subject to backup withholding.

You will not be subject to backup withholding on payments you receive if you give the requester your correct TIN, make the proper certifications, and report all your taxable interest and dividends on your tax return.

Payments you receive will be subject to backup withholding if:

1. You do not furnish your TIN to the requester;
2. You do not certify your TIN when required (see the instructions for Part II for details);
3. The IRS tells the requester that you furnished an incorrect TIN;
4. The IRS tells you that you are subject to backup withholding because you did not report all your interest and dividends on your tax return (for reportable interest and dividends only); or
5. You do not certify to the requester that you are not subject to backup withholding, as described in item 4 under “*By signing the filled-out form*” above (for reportable interest and dividend accounts opened after 1983 only).

Certain payees and payments are exempt from backup withholding. See *Exempt payee code*, later, and the separate Instructions for the Requester of Form W-9 for more information.

See also *Establishing U.S. status for purposes of chapter 3 and chapter 4 withholding*, earlier.

What Is FATCA Reporting?

The Foreign Account Tax Compliance Act (FATCA) requires a participating foreign financial institution to report all U.S. account holders that are specified U.S. persons. Certain payees are exempt from FATCA reporting. See *Exemption from FATCA reporting code*, later, and the Instructions for the Requester of Form W-9 for more information.

Updating Your Information

You must provide updated information to any person to whom you claimed to be an exempt payee if you are no longer an exempt payee and anticipate receiving reportable payments in the future from this person. For example, you may need to provide updated information if you are a C corporation that elects to be an S corporation, or if you are no longer tax exempt. In addition, you must furnish a new Form W-9 if the name or TIN changes for the account, for example, if the grantor of a grantor trust dies.

Penalties

Failure to furnish TIN. If you fail to furnish your correct TIN to a requester, you are subject to a penalty of \$50 for each such failure unless your failure is due to reasonable cause and not to willful neglect.

Civil penalty for false information with respect to withholding. If you make a false statement with no reasonable basis that results in no backup withholding, you are subject to a \$500 penalty.

Criminal penalty for falsifying information. Willfully falsifying certifications or affirmations may subject you to criminal penalties including fines and/or imprisonment.

Misuse of TINs. If the requester discloses or uses TINs in violation of federal law, the requester may be subject to civil and criminal penalties.

Specific Instructions

Line 1

You must enter one of the following on this line; **do not** leave this line blank. The name should match the name on your tax return.

If this Form W-9 is for a joint account (other than an account maintained by a foreign financial institution (FFI)), list first, and then circle, the name of the person or entity whose number you entered in Part I of Form W-9. If you are providing Form W-9 to an FFI to document a joint account, each holder of the account that is a U.S. person must provide a Form W-9.

• **Individual.** Generally, enter the name shown on your tax return. If you have changed your last name without informing the Social Security Administration (SSA) of the name change, enter your first name, the last name as shown on your social security card, and your new last name.

Note for ITIN applicant: Enter your individual name as it was entered on your Form W-7 application, line 1a. This should also be the same as the name you entered on the Form 1040 you filed with your application.

• **Sole proprietor.** Enter your individual name as shown on your Form 1040 on line 1. Enter your business, trade, or “doing business as” (DBA) name on line 2.

• **Partnership, C corporation, S corporation, or LLC, other than a disregarded entity.** Enter the entity’s name as shown on the entity’s tax return on line 1 and any business, trade, or DBA name on line 2.

• **Other entities.** Enter your name as shown on required U.S. federal tax documents on line 1. This name should match the name shown on the charter or other legal document creating the entity. Enter any business, trade, or DBA name on line 2.

• **Disregarded entity.** In general, a business entity that has a single owner, including an LLC, and is not a corporation, is disregarded as an entity separate from its owner (a disregarded entity). See Regulations section 301.7701-2(c)(2). A disregarded entity should check the appropriate box for the tax classification of its owner. Enter the owner’s name on line 1. The name of the owner entered on line 1 should never be a disregarded entity. The name on line 1 should be the name shown on the income tax return on which the income should be reported. For

example, if a foreign LLC that is treated as a disregarded entity for U.S. federal tax purposes has a single owner that is a U.S. person, the U.S. owner’s name is required to be provided on line 1. If the direct owner of the entity is also a disregarded entity, enter the first owner that is not disregarded for federal tax purposes. Enter the disregarded entity’s name on line 2. If the owner of the disregarded entity is a foreign person, the owner must complete an appropriate Form W-8 instead of a Form W-9. This is the case even if the foreign person has a U.S. TIN.

Line 2

If you have a business name, trade name, DBA name, or disregarded entity name, enter it on line 2.

Line 3a

Check the appropriate box on line 3a for the U.S. federal tax classification of the person whose name is entered on line 1. Check only one box on line 3a.

IF the entity/individual on line 1 is a(n) . . .	THEN check the box for . . .
• Corporation	Corporation.
• Individual or	Individual/sole proprietor.
• Sole proprietorship	
• LLC classified as a partnership for U.S. federal tax purposes or	Limited liability company and enter the appropriate tax classification:
• LLC that has filed Form 8832 or 2553 electing to be taxed as a corporation	P = Partnership, C = C corporation, or S = S corporation.
• Partnership	Partnership.
• Trust/estate	Trust/estate.

Line 3b

Check this box if you are a partnership (including an LLC classified as a partnership for U.S. federal tax purposes), trust, or estate that has any foreign partners, owners, or beneficiaries, and you are providing this form to a partnership, trust, or estate, in which you have an ownership interest. You must check the box on line 3b if you receive a Form W-8 (or documentary evidence) from any partner, owner, or beneficiary establishing foreign status or if you receive a Form W-9 from any partner, owner, or beneficiary that has checked the box on line 3b.

Note: A partnership that provides a Form W-9 and checks box 3b may be required to complete Schedules K-2 and K-3 (Form 1065). For more information, see the Partnership Instructions for Schedules K-2 and K-3 (Form 1065).

If you are required to complete line 3b but fail to do so, you may not receive the information necessary to file a correct information return with the IRS or furnish a correct payee statement to your partners or beneficiaries. See, for example, sections 6698, 6722, and 6724 for penalties that may apply.

Line 4 Exemptions

If you are exempt from backup withholding and/or FATCA reporting, enter in the appropriate space on line 4 any code(s) that may apply to you.

Exempt payee code.

- Generally, individuals (including sole proprietors) are not exempt from backup withholding.
- Except as provided below, corporations are exempt from backup withholding for certain payments, including interest and dividends.
- Corporations are not exempt from backup withholding for payments made in settlement of payment card or third-party network transactions.
- Corporations are not exempt from backup withholding with respect to attorneys’ fees or gross proceeds paid to attorneys, and corporations that provide medical or health care services are not exempt with respect to payments reportable on Form 1099-MISC.

The following codes identify payees that are exempt from backup withholding. Enter the appropriate code in the space on line 4.

1—An organization exempt from tax under section 501(a), any IRA, or a custodial account under section 403(b)(7) if the account satisfies the requirements of section 401(f)(2).

- 2—The United States or any of its agencies or instrumentalities.
- 3—A state, the District of Columbia, a U.S. commonwealth or territory, or any of their political subdivisions or instrumentalities.
- 4—A foreign government or any of its political subdivisions, agencies, or instrumentalities.
- 5—A corporation.
- 6—A dealer in securities or commodities required to register in the United States, the District of Columbia, or a U.S. commonwealth or territory.
- 7—A futures commission merchant registered with the Commodity Futures Trading Commission.
- 8—A real estate investment trust.
- 9—An entity registered at all times during the tax year under the Investment Company Act of 1940.
- 10—A common trust fund operated by a bank under section 584(a).
- 11—A financial institution as defined under section 581.
- 12—A middleman known in the investment community as a nominee or custodian.
- 13—A trust exempt from tax under section 664 or described in section 4947.

The following chart shows types of payments that may be exempt from backup withholding. The chart applies to the exempt payees listed above, 1 through 13.

IF the payment is for . . .	THEN the payment is exempt for . . .
• Interest and dividend payments	All exempt payees except for 7.
• Broker transactions	Exempt payees 1 through 4 and 6 through 11 and all C corporations. S corporations must not enter an exempt payee code because they are exempt only for sales of noncovered securities acquired prior to 2012.
• Barter exchange transactions and patronage dividends	Exempt payees 1 through 4.
• Payments over \$600 required to be reported and direct sales over \$5,000 ¹	Generally, exempt payees 1 through 5. ²
• Payments made in settlement of payment card or third-party network transactions	Exempt payees 1 through 4.

¹ See Form 1099-MISC, Miscellaneous Information, and its instructions.

² However, the following payments made to a corporation and reportable on Form 1099-MISC are not exempt from backup withholding: medical and health care payments, attorneys' fees, gross proceeds paid to an attorney reportable under section 6045(f), and payments for services paid by a federal executive agency.

Exemption from FATCA reporting code. The following codes identify payees that are exempt from reporting under FATCA. These codes apply to persons submitting this form for accounts maintained outside of the United States by certain foreign financial institutions. Therefore, if you are only submitting this form for an account you hold in the United States, you may leave this field blank. Consult with the person requesting this form if you are uncertain if the financial institution is subject to these requirements. A requester may indicate that a code is not required by providing you with a Form W-9 with "Not Applicable" (or any similar indication) entered on the line for a FATCA exemption code.

A—An organization exempt from tax under section 501(a) or any individual retirement plan as defined in section 7701(a)(37).

B—The United States or any of its agencies or instrumentalities.

C—A state, the District of Columbia, a U.S. commonwealth or territory, or any of their political subdivisions or instrumentalities.

D—A corporation the stock of which is regularly traded on one or more established securities markets, as described in Regulations section 1.1472-1(c)(1)(i).

E—A corporation that is a member of the same expanded affiliated group as a corporation described in Regulations section 1.1472-1(c)(1)(i).

F—A dealer in securities, commodities, or derivative financial instruments (including notional principal contracts, futures, forwards, and options) that is registered as such under the laws of the United States or any state.

G—A real estate investment trust.

H—A regulated investment company as defined in section 851 or an entity registered at all times during the tax year under the Investment Company Act of 1940.

I—A common trust fund as defined in section 584(a).

J—A bank as defined in section 581.

K—A broker.

L—A trust exempt from tax under section 664 or described in section 4947(a)(1).

M—A tax-exempt trust under a section 403(b) plan or section 457(g) plan.

Note: You may wish to consult with the financial institution requesting this form to determine whether the FATCA code and/or exempt payee code should be completed.

Line 5

Enter your address (number, street, and apartment or suite number). This is where the requester of this Form W-9 will mail your information returns. If this address differs from the one the requester already has on file, enter "NEW" at the top. If a new address is provided, there is still a chance the old address will be used until the payor changes your address in their records.

Line 6

Enter your city, state, and ZIP code.

Part I. Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. If you are a resident alien and you do not have, and are not eligible to get, an SSN, your TIN is your IRS ITIN. Enter it in the entry space for the Social security number. If you do not have an ITIN, see *How to get a TIN* below.

If you are a sole proprietor and you have an EIN, you may enter either your SSN or EIN.

If you are a single-member LLC that is disregarded as an entity separate from its owner, enter the owner's SSN (or EIN, if the owner has one). If the LLC is classified as a corporation or partnership, enter the entity's EIN.

Note: See *What Name and Number To Give the Requester*, later, for further clarification of name and TIN combinations.

How to get a TIN. If you do not have a TIN, apply for one immediately. To apply for an SSN, get Form SS-5, Application for a Social Security Card, from your local SSA office or get this form online at www.SSA.gov. You may also get this form by calling 800-772-1213. Use Form W-7, Application for IRS Individual Taxpayer Identification Number, to apply for an ITIN, or Form SS-4, Application for Employer Identification Number, to apply for an EIN. You can apply for an EIN online by accessing the IRS website at www.irs.gov/EIN. Go to www.irs.gov/Forms to view, download, or print Form W-7 and/or Form SS-4. Or, you can go to www.irs.gov/OrderForms to place an order and have Form W-7 and/or Form SS-4 mailed to you within 15 business days.

If you are asked to complete Form W-9 but do not have a TIN, apply for a TIN and enter "Applied For" in the space for the TIN, sign and date the form, and give it to the requester. For interest and dividend payments, and certain payments made with respect to readily tradable instruments, you will generally have 60 days to get a TIN and give it to the requester before you are subject to backup withholding on payments. The 60-day rule does not apply to other types of payments. You will be subject to backup withholding on all such payments until you provide your TIN to the requester.

Note: Entering "Applied For" means that you have already applied for a TIN or that you intend to apply for one soon. See also *Establishing U.S. status for purposes of chapter 3 and chapter 4 withholding*, earlier, for when you may instead be subject to withholding under chapter 3 or 4 of the Code.

Caution: A disregarded U.S. entity that has a foreign owner must use the appropriate Form W-8.

Part II. Certification

To establish to the withholding agent that you are a U.S. person, or resident alien, sign Form W-9. You may be requested to sign by the withholding agent even if item 1, 4, or 5 below indicates otherwise.

For a joint account, only the person whose TIN is shown in Part I should sign (when required). In the case of a disregarded entity, the person identified on line 1 must sign. Exempt payees, see *Exempt payee code*, earlier.

Signature requirements. Complete the certification as indicated in items 1 through 5 below.

1. Interest, dividend, and barter exchange accounts opened before 1984 and broker accounts considered active during 1983. You must give your correct TIN, but you do not have to sign the certification.

2. Interest, dividend, broker, and barter exchange accounts opened after 1983 and broker accounts considered inactive during 1983. You must sign the certification or backup withholding will apply. If you are subject to backup withholding and you are merely providing your correct TIN to the requester, you must cross out item 2 in the certification before signing the form.

3. Real estate transactions. You must sign the certification. You may cross out item 2 of the certification.

4. Other payments. You must give your correct TIN, but you do not have to sign the certification unless you have been notified that you have previously given an incorrect TIN. "Other payments" include payments made in the course of the requester's trade or business for rents, royalties, goods (other than bills for merchandise), medical and health care services (including payments to corporations), payments to a nonemployee for services, payments made in settlement of payment card and third-party network transactions, payments to certain fishing boat crew members and fishermen, and gross proceeds paid to attorneys (including payments to corporations).

5. Mortgage interest paid by you, acquisition or abandonment of secured property, cancellation of debt, qualified tuition program payments (under section 529), ABLE accounts (under section 529A), IRA, Coverdell ESA, Archer MSA or HSA contributions or distributions, and pension distributions. You must give your correct TIN, but you do not have to sign the certification.

What Name and Number To Give the Requester

For this type of account:	Give name and SSN of:
1. Individual	The individual
2. Two or more individuals (joint account) other than an account maintained by an FFI	The actual owner of the account or, if combined funds, the first individual on the account ¹
3. Two or more U.S. persons (joint account maintained by an FFI)	Each holder of the account
4. Custodial account of a minor (Uniform Gift to Minors Act)	The minor ²
5. a. The usual revocable savings trust (grantor is also trustee)	The grantor-trustee ¹
b. So-called trust account that is not a legal or valid trust under state law	The actual owner ¹
6. Sole proprietorship or disregarded entity owned by an individual	The owner ³
7. Grantor trust filing under Optional Filing Method 1 (see Regulations section 1.671-4(b)(2)(i)(A))**	The grantor*

For this type of account:	Give name and EIN of:
8. Disregarded entity not owned by an individual	The owner
9. A valid trust, estate, or pension trust	Legal entity ⁴
10. Corporation or LLC electing corporate status on Form 8832 or Form 2553	The corporation
11. Association, club, religious, charitable, educational, or other tax-exempt organization	The organization
12. Partnership or multi-member LLC	The partnership
13. A broker or registered nominee	The broker or nominee
14. Account with the Department of Agriculture in the name of a public entity (such as a state or local government, school district, or prison) that receives agricultural program payments	The public entity
15. Grantor trust filing Form 1041 or under the Optional Filing Method 2, requiring Form 1099 (see Regulations section 1.671-4(b)(2)(i)(B))**	The trust

¹ List first and circle the name of the person whose number you furnish. If only one person on a joint account has an SSN, that person's number must be furnished.

² Circle the minor's name and furnish the minor's SSN.

³ You must show your individual name on line 1, and enter your business or DBA name, if any, on line 2. You may use either your SSN or EIN (if you have one), but the IRS encourages you to use your SSN.

⁴ List first and circle the name of the trust, estate, or pension trust. (Do not furnish the TIN of the personal representative or trustee unless the legal entity itself is not designated in the account title.)

* **Note:** The grantor must also provide a Form W-9 to the trustee of the trust.

** For more information on optional filing methods for grantor trusts, see the Instructions for Form 1041.

Note: If no name is circled when more than one name is listed, the number will be considered to be that of the first name listed.

Secure Your Tax Records From Identity Theft

Identity theft occurs when someone uses your personal information, such as your name, SSN, or other identifying information, without your permission to commit fraud or other crimes. An identity thief may use your SSN to get a job or may file a tax return using your SSN to receive a refund.

To reduce your risk:

- Protect your SSN,
- Ensure your employer is protecting your SSN, and
- Be careful when choosing a tax return preparer.

If your tax records are affected by identity theft and you receive a notice from the IRS, respond right away to the name and phone number printed on the IRS notice or letter.

If your tax records are not currently affected by identity theft but you think you are at risk due to a lost or stolen purse or wallet, questionable credit card activity, or a questionable credit report, contact the IRS Identity Theft Hotline at 800-908-4490 or submit Form 14039.

For more information, see Pub. 5027, Identity Theft Information for Taxpayers.

Victims of identity theft who are experiencing economic harm or a systemic problem, or are seeking help in resolving tax problems that have not been resolved through normal channels, may be eligible for Taxpayer Advocate Service (TAS) assistance. You can reach TAS by calling the TAS toll-free case intake line at 877-777-4778 or TTY/TDD 800-829-4059.

Protect yourself from suspicious emails or phishing schemes.

Phishing is the creation and use of email and websites designed to mimic legitimate business emails and websites. The most common act is sending an email to a user falsely claiming to be an established legitimate enterprise in an attempt to scam the user into surrendering private information that will be used for identity theft.

The IRS does not initiate contacts with taxpayers via emails. Also, the IRS does not request personal detailed information through email or ask taxpayers for the PIN numbers, passwords, or similar secret access information for their credit card, bank, or other financial accounts.

If you receive an unsolicited email claiming to be from the IRS, forward this message to phishing@irs.gov. You may also report misuse of the IRS name, logo, or other IRS property to the Treasury Inspector General for Tax Administration (TIGTA) at 800-366-4484. You can forward suspicious emails to the Federal Trade Commission at spam@uce.gov or report them at www.ftc.gov/complaint. You can contact the FTC at www.ftc.gov/idtheft or 877-IDTHEFT (877-438-4338). If you have been the victim of identity theft, see www.IdentityTheft.gov and Pub. 5027.

Go to www.irs.gov/IdentityTheft to learn more about identity theft and how to reduce your risk.

Privacy Act Notice

Section 6109 of the Internal Revenue Code requires you to provide your correct TIN to persons (including federal agencies) who are required to file information returns with the IRS to report interest, dividends, or certain other income paid to you; mortgage interest you paid; the acquisition or abandonment of secured property; the cancellation of debt; or contributions you made to an IRA, Archer MSA, or HSA. The person collecting this form uses the information on the form to file information returns with the IRS, reporting the above information. Routine uses of this information include giving it to the Department of Justice for civil and criminal litigation and to cities, states, the District of Columbia, and U.S. commonwealths and territories for use in administering their laws. The information may also be disclosed to other countries under a treaty, to federal and state agencies to enforce civil and criminal laws, or to federal law enforcement and intelligence agencies to combat terrorism. You must provide your TIN whether or not you are required to file a tax return. Under section 3406, payors must generally withhold a percentage of taxable interest, dividends, and certain other payments to a payee who does not give a TIN to the payor. Certain penalties may also apply for providing false or fraudulent information.